

TENTATIVE RULINGS for LAW and MOTION

April 1, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Guzman v. Aono**
 Case No. CV2025-3687

Hearing Date: **April 1, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Christina Guzman’s (known as Jessie Guzman) motion to redact personal information for privacy and safety is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rules 2.550-2.551.) A party requesting that a record be filed under seal must file a motion that is “accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1).) While plaintiff filed a memorandum of points and authorities and her declaration, these documents do not contain facts sufficient to justify plaintiff’s requested sealing. (*Ibid.*; see also *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 483-484.) Accordingly, there are insufficient facts to support the required findings to seal information, as stated in California Rule of Court, rule 2.550(d).

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Hendrix v. Ebay Inc.**
 Case No. CV2026-0240

Hearing Date: **April 1, 2026** **Department Fourteen** **9:00 a.m.**

While plaintiff Shannon Hendrix timely filed his opposition on March 17, 2026, he did not timely serve the opposition on defendant eBay Inc. (Code Civ. Proc., § 1005, subds. (b) & (c) [“all papers opposing a motion...shall be served by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers...are filed”]; Miller decl. ISO reply, ¶¶ 5, 11.) However, despite this untimely service, the Court, in its discretion, consider plaintiff’s opposition. (See *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

As the Court is considering plaintiff’s opposition, on its own motion, the Court **CONTINUES** defendant eBay Inc.’s motion to compel arbitration and stay action to **April 28, 2026**, at 9:00 a.m. in Department Fourteen. Defendant may file an amended reply in support of its motion by **April 8, 2026**. (See Code Civ. Proc., § 1005, subd. (b).)

TENTATIVE RULING

Case: **Magallon v. Solorzano**
 Case No. CV2023-2182

Hearing Date: **April 1, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Reyna Magallon and Esequiel Pena’s unopposed motion to strike defendant Francisco Solorzano’s answer or, in the alternative, issue sanctions against defendant and his counsel of record is **GRANTED IN PART**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2033.290.) As an initial matter, the Court does not consider whether to impose terminating sanctions because plaintiffs’ notice of motion fails to specify that plaintiffs seek terminating sanctions. (Code Civ. Proc., § 2023.040 [“A request for a sanction shall, in the notice of motion...specify the type of sanction sought”].)

The Court finds that defendant Francisco Solorzano and his counsel (Harry Roth) misused the discovery process by failing to pay the sanction as ordered by the Court on September 16, 2025. (Code Civ. Proc., § 2023.010, subd. (g); Seuthe decl., ¶ 6, Exhibit C.) As this Court takes an incremental approach to sanctions and plaintiffs provided evidence that defendant and/or his counsel violated only one court order, this Court imposes monetary sanctions but declines to impose issue or evidentiary sanctions. (Code Civ. Proc., § 2023.030, subds. (a)-(c); *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604; Seuthe decl., ¶¶ 2-8, Exhibit A-C.) The Court orders monetary sanctions, in the amount of **\$1,560.00**, against defendant and defendant’s counsel. (Code Civ. Proc., §§ 2023.010, subd. (g), 2023.030, subd. (a); Seuthe decl., ¶ 9.) The Court declines to award sanctions for time not yet incurred. Defendant and defendant’s counsel must pay the sanction by **May 1, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vorhees v. Keables et al.**
Case No. CV2026-0216

Hearing Date: **April 1, 2026** **Department Eleven** **9:00 a.m.**

Demurrer:

Respondent Woodland Community Colleges' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Respondent's demurrer is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146 - 1147.) The Court finds that petitioner James Patrick Vorhees' writ of mandate or prohibition ("writ") fails to identify: (1) a relevant legal basis for relief pursuant to Code of Civil Procedure section 1085; or (2) a judicial function as required for relief pursuant to Code of Civil Procedure section 1102; thus, the writ fails to state facts sufficient to constitute any cause of action against respondent. (Code Civ. Proc., §§ 1085, 1102; see *Pearson v. Reed* (1935) 6 Cal.App.2d 277, 287; Writ, ¶ 4.) The Court also notes that the writ is not verified, as required by Code of Civil Procedure section 1103.

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Writ of mandate or prohibition:

Given the Court's ruling on respondent Woodland Community College's demurrer, petitioner James Patrick Vorhees' writ of mandate or prohibition is **DENIED AS MOOT**.

The writ of mandate or prohibition does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.